



POLICE DEPARTMENT

June 11, 2010

MEMORANDUM FOR: Police Commissioner

RE: Police Officer Wendy Colon
Tax Registry Number 92014
25 Precinct
Disciplinary Case Nos. 84934/09

The above-named member of the Department appeared before me on
March 24, 2010, charged with the following:

1. Said Police Officer Wendy Colon, assigned to the 25 Precinct, while on duty, on August 5, 2007, at or about 1630 hours, in the confines of the 25 Precinct stationhouse, New York County, did abuse her authority as a member of the New York City Police Department in that, without prior authorization from a supervisor, she conducted a strip search on an individual known to the Department.

P.G. 208-05 Page 2, Paragraph 1 – STRIP SEARCH

The Department was represented by Mary Lynne Frey, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through her counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

It is recommended that the charge be Dismissed.

COURTESY • PROFESSIONALISM • RESPECT

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Dawn Heyward and retired Sergeant Jose Montanez as witnesses.

Dawn Heyward

Dawn Heyward, who is employed as regional director for Graham-Windham Children and Family Services, testified that on August 5, 2007, at about 4:00 p.m., she was driving her car from the Bronx into Manhattan. In the car with her was Anthony Heyward, who was then her fiancée and is now her husband. As she was driving southbound on Lexington Avenue, a marked police car (RMP) pulled her car over. A police officer approached her and told her that he had pulled her over because she was using a cell phone while she was driving. She denied that she had been using her cell phone while she was driving and she requested that the officer look through her cell phone's record of calls made and received to validate her claim. She then asked to speak with a captain. The officer walked away from her car and made a call on his own cell phone. Anthony called 911 to ask for assistance. When a sergeant arrived at the scene, she told the sergeant that she wanted to go to the precinct. The sergeant told her to drive her car to the precinct. She followed an RMP that was in front of her car. A second RMP followed her car.

When they arrived at the 25 Precinct, she parked her car and she and Anthony entered the stationhouse. They were escorted into a room where they assumed that they

would be meeting with the captain. A few minutes after entering the room, the officer who had pulled her car over entered the room and directed Anthony to leave the room. After Anthony left, the officer walked over to where she was seated, grabbed her upper right arm, pulled her up to a standing position, pushed her into the frame of the door and handcuffed her. When she asked him what was going on, he told her that she was being arrested for assaulting an officer. She was taken to another area where she was seated in a chair and handcuffed to the outside of a cell.

A female officer (who she identified in the Trial Room as the Respondent) approached her and told her that because she was being arrested, she was going to be searched in another room. The Respondent un-handcuffed her and walked her to another area and into an open cell. The Respondent asked her to raise her blouse and so she lifted up her blouse. The Respondent then asked her to lift up her bra and shake it out. Heyward lifted up her bra which resulted in her breasts being exposed. The Respondent then asked her to turn around. After she turned around and was facing the Respondent, the Respondent pulled the waistband on her skirt and looked down inside her skirt. The Respondent asked her what had happened. She began to cry and shake and told the Respondent that she felt humiliated. The Respondent walked her back to the area where the Respondent had first approached her. She was re-seated on the chair and re-handcuffed to the outside of the cell. The Respondent then left the area and after that she did not see the Respondent again.

The officer who had pulled her car over entered the room, wrote out three summonses and then left. She was un-handcuffed by another officer who handed her the three summonses and told her that she was allowed to leave the precinct. She went

directly from the precinct to the emergency room at North General Hospital (the hospital) because she had been “visibly bruised” as a result of an “assault” perpetrated by the officer who had pulled her car over. None of this bruising was caused by the Respondent.

On cross-examination, Heyward confirmed that when the Respondent searched her, there was no one else in the room. She had no physical contact at all with the Respondent who stood a short distance away from her when she directed her to lift her shirt and to pull out, but not to unhook, her bra. The Respondent never touched her hair, which was in a ponytail. Although other officers had yelled at her and had called her a liar, the Respondent made no such remarks. The Respondent never directed her to take off any item of clothing or to remove her shoes. From start to finish, the search took “a minute or two.”

After she left the hospital, she contacted the Internal Affairs Bureau (IAB) and was referred to the Civilian Complaint Review Board (CCRB). After she complained to CCRB, she retained legal counsel. Her attorney accompanied her to CCRB when she was interviewed there because she had “absolutely” refused to be interviewed by CCRB unless her attorney was present. Her attorney filed a notice of claim on her behalf seeking damages of \$350,000.00 against the Respondent (who is identified as “Jane Doe,” the police officer who conducted the search), other police officers and the Department. When she was deposed regarding her lawsuit, she stated that she had suffered psychological damage as a result of this incident. She confirmed that she has not missed any time at work. Heyward denied that a CCRB investigator had left messages on her phone that she did not respond to. When Heyward was confronted with a CCRB

interview in which she stated that she had reasons for not returning a CCRB investigator's phone messages, she testified that she had no recollection of that conversation.

Retired Sergeant Jose Montanez

Former Sergeant Jose Montanez, a 27-year member who retired from the Department only a few days prior to his testimony at this trial, recalled that he was assigned to the 25 Precinct for nine years. On August 5, 2007, he was assigned as the patrol supervisor. That afternoon, he responded to Lexington Avenue where officers had stopped a car because the female driver was talking on a cell phone while driving. The driver had refused to show ID to the officers. The driver told Sergeant Montanez that she wanted to speak to the captain. Since the driver was not under arrest, Sergeant Montanez told her to drive her own car to the precinct. An RMP stayed in front of her car during the trip and Sergeant Montanez followed her car in his RMP.

When they arrived at the 25 Precinct, Sergeant Montanez watched her park her car and then he parked his RMP. He told the officers to escort the driver into the juvenile room. After Sergeant Montanez entered the 25 Precinct, he heard a commotion near the front desk. When Sergeant Montanez looked over at the driver, he saw that the driver was in handcuffs. Sergeant Montanez tried "to explain to her that she is going to get some summonses and get cut loose" but "she didn't want to hear about it so I left." Sergeant Montanez did not have any conversation with the Respondent and he did not order any officer to search the driver.

On cross-examination, Sergeant Montanez confirmed that when he saw that the driver was standing at the front desk in handcuffs, he knew that she was under arrest. He testified that he assumed that the desk officer, Sergeant Torrellas, had authorized the arrest of the driver. Sergeant Montanez confirmed that since the driver had been arrested inside a police facility, she had to be searched and that since she was a female, the search could only be performed by a female officer.

Sergeant Montanez testified that when an officer is conducting a strip search, the officer would ask the person being searched to remove their clothes, take off their shoes and shake them out, take off their socks and shake them out, and remove their underwear and shake their underwear to insure that nothing is hidden in the underwear. Officers conducting strip searches also use their hands to crush removed shirts and pants to insure that nothing is hidden in these garments. When Sergeant Montanez was asked whether an officer's request that a person pull up their shirt and shake out their waistband constituted a strip search, he answered that if no clothing was removed he did not believe the search would constitute a strip search.

Sergeant Montanez testified that when the Department issues a new or revised procedure by amending the Patrol Guide or by issuing an Interim Order, the training sergeant is required to conduct training sessions for officers to alert them to the new or revised procedure. He had no recollection of any specific training sessions for officers held before August 5, 2007, regarding strip searches. Officers who attend training sessions at the 25 Precinct have to sign in that they are present for the training and a log is maintained which documents who has attended what training sessions.

The Respondent's Case

The Respondent testified on her own behalf.

The Respondent

The Respondent testified that she has been assigned to the 25 Precinct for all of the 12 years she has been a member of the service with the exception of the period between 2005 and 2006 when she was deployed to Afghanistan as a U.S. Army Captain.

August 5, 2007, was her regular day off but she was present inside the 25 Precinct that day because she had been assigned to work an overtime tour assigned to a detail for a parade that was held that day. She was in the muster room when Sergeant Torrellas, who was assigned as the Desk Officer, came in and told her that he needed her to search a female prisoner who was under arrest. Sergeant Torrellas did not tell her to perform a strip search of the female prisoner.

She went to the holding cell for female prisoners. The sole female there was very angry. She was screaming and yelling. She was handcuffed to the outside of a cell. The Respondent approached her and told her that she was going to be searched in another room. The Respondent un-handcuffed her and walked her to a private, secluded area where she removed Heyward's handcuffs.

The Respondent checked all of the pockets on Heyward's clothing. Because the Respondent had been trained that the cup of a bra is a potential pocket, the Respondent asked her to lift up her shirt and to pull her bra out and shake it. However, Heyward pulled her entire bra off of her breasts. The Respondent told Heyward, "That's not necessary." Heyward pulled her bra back down over her breasts.

The Respondent checked to see if Heyward was hiding anything inside her skirt. The Respondent was not certain whether she had asked Heyward to lift up her skirt or to lower it. The Respondent did not ask Heyward to remove any item of clothing she was wearing.

The Respondent testified that she had been trained that a search did not constitute a strip search unless the person being searched was required to remove all of their clothes.

The Respondent testified that she kept up with changes to the Patrol Guide and that when she would receive Interim Orders which changed Patrol Guide Procedures, she would insert these Interim Orders into her Patrol Guide, which she took with her when she was deployed to Afghanistan. She first learned that the procedure regarding what constitutes a strip search had been changed when she received an Interim Order that came out in February, 2009.

On cross-examination, she reiterated that she did not ask Heyward to take her bra off or to pull it out in a manner that would have exposed her breasts. The Respondent testified that she is now aware that a FINEST Message was sent out in 2004 which changed the procedure regarding what constitutes a strip search. The Respondent testified that this FINEST Message was never discussed at any 25 Precinct training session, that she never saw it posted anywhere inside the 25 Precinct, and that it was never read at any roll call she attended. The Respondent testified that during the time she has been assigned to the 25 Precinct, she has never seen a supervisor read a FINEST Message at any roll call she has attended.

FINDINGS & ANALYSIS

The Respondent is charged with abusing her authority on August 5, 2007, by conducting a strip search of Heyward without having received prior authorization from a supervisor. I recommend that this charge be dismissed.

The facts in this case are largely not in dispute. The Respondent had nothing to do with the street interaction between Heyward and officers who stopped her car and the Respondent was not involved in the stationhouse altercation that resulted in Heyward's arrest. The only reason the Respondent came into contact with Heyward inside the stationhouse was because a female officer was needed to search Heyward and the Respondent was assigned this duty. Thus, the Respondent was performing a task that female police officers are often assigned to perform: The search of a female who is under arrest and is being detained at a police facility.

Based on these undisputed facts, I would initially note that since the Respondent had nothing to do with Heyward's detention or arrest, she had no animus toward Heyward and no reason to want to embarrass her by subjecting her to a strip search. Heyward admitted that the Respondent spoke to her in a respectful and professional manner.

The Respondent was conducting a search at a police facility. Paragraph B. of Patrol Guide Procedure 208-05, which governs such searches, mandates that the "designated member of the same sex as the prisoner will¹ conduct a *thorough* (emphasis added) search of the suspect's person and clothing to insure to ensure the safety of all persons within the facility..." and specifically requires that "(a)ll pockets are to be

¹ The Patrol Guide Section in effect on August 5, 2007, states "will." The word "will" has since been changed to "shall."

emptied and all clothing not removed will be examined by grabbing, crushing and squeezing the garments and by sliding the hands across the body to detect articles that may be underneath or sewn to the clothing.”

With regard to the search the Respondent performed on Heyward, I credit the Respondent’s claim that she was trained that the cups on a bra are potential pockets where weapons and contraband can be, and have been, secreted. Thus, the Respondent had the right to insure that Heyward was not secreting anything inside the cups on her bra “by grabbing, crushing and squeezing” the cups and by “sliding the hands across” Heyward’s “body to detect articles that may be underneath” the cups. I further credit the Respondent’s testimony that rather than engage in the more intrusive actions of sliding her hands across Heyward’s breasts or squeezing her cups, she told Heyward to pull the front of her bra outwards (not to lift it up off of her breasts as Heyward actually did) which would have caused any weapons or contraband secreted in the cups to fall out of the cups but would not have resulted in Heyward’s breasts being exposed. The Respondent also checked to see if Heyward was hiding anything inside her skirt by asking Heyward to either lift up her skirt or to lower it.

Paragraph C. of Patrol Guide Procedure 208-05 governs Strip Searches. As of August 5, 2007, this section (which had been in effect since January 1, 2000) contained no definition of what constituted a strip search. However, on May 13, 2004, a FINEST Message “Subject: Strip Searches Patrol Guide 208-05” was sent to “All Commands.” This message stated that “Any search in which an individual’s undergarments (bra, underwear, etc...) and/or private areas are exposed or in which an individual’s clothing is

removed, lifted, pulled up or pulled down to expose undergarments or private areas is considered a strip search for the purposes of this procedure.”²

Respondent’s counsel argued that since this FINEST Message contains the direction that the message is “to be read at ten (10) consecutive roll calls & posted at all commands,” and since the Department offered no testimony or other evidence that this FINEST Message was posted anywhere inside the 25 Precinct or read at any roll call, the Department did not prove that the Respondent was notified about this FINEST Message.

Disciplinary decisions have consistently held that a member’s claim that he or she was not aware of a procedure or rule contained in the Patrol Guide, in the Administrative Guide, in an Interim Order or in a Departmental communication, is not a defense to a charge that the officer violated that procedure or rule. No exception has been recognized where a procedural revision is communicated to members via a FINEST Message, even where, as here, the FINEST Message contains the direction that the message is “to be read at ten (10) consecutive roll calls & posted at all commands.” Thus, all uniformed members were placed on constructive notice regarding the revision to the Patrol Guide’s Strip Search procedure that was contained in this FINEST Message.

The Assistant Department Advocate (the Advocate) argued that “judicial notice” should be taken that the Respondent must have been aware of the existence of this FINEST Message at the time she searched Heyward because this Message was sent in May, 2004, and the Respondent searched Heyward in August, 2007. However, I believe consideration must be given to the fact that (as the Respondent testified and as her

² Although this language was included in an Interim Order revising Section C. of Patrol Guide Procedure 208-05, this Interim Order was not issued until February 9, 2009, well over a year after the Respondent’s search of Heyward.

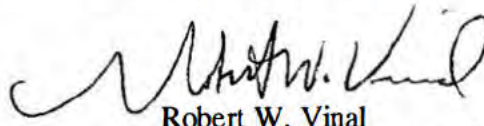
personnel record establishes) during much of the period between May, 2004 and August, 2007, the Respondent was assigned to the Military and Extended Leave Desk (MELD) in connection with her deployment to Afghanistan as a U.S. Army Captain during 2005 and 2006. Since the Respondent may well have missed 25 Precinct training regarding the revisions to the Strip Search procedure contained in the FINEST Message because she was on active military duty, it seems unfair to punish the Respondent for being unaware of this procedural change.

In this regard, I find it significant that Sergeant Montanez, who was called as a witness by the Department and who was a supervisor at the 25 Precinct in August, 2007, testified that it was his understanding then, and for years afterwards, that a search did not constitute a strip search unless the person being searched was required to remove all of their clothing, including their shoes, socks and underwear. Since it is not disputed that the Respondent did not order Heyward to remove any item of her clothing, Sergeant Montanez testified that in his opinion the Respondent had not conducted a strip search of Heyward.

In conclusion, I find that the Respondent acted in good faith and in the belief that she was conforming to Department policy regarding properly conducting a search at a police facility and that she had no intention to violate the Department's policy regarding strip searches.

Therefore, it is recommended that this charge be Dismissed.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPROVED
NOV 08 2010
RAYMOND W. KELLY
POLICE COMMISSIONER

